सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई-४०० ०९९
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F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 6 **Date: 20.03.2020**

दिनांक 28.02.2020 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 28.02.2020

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 28.02.2020 at 11.30 A.M. was presided over by Shri Vijay Singh Chauhan, Commissioner of Customs (General), Shri Vinayak Azaad, Commissioner of Customs(Import), Shri S. Anantha Krishnan, Commissioner of Customs (Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नामवपद/Name & designation	संगठन/Organization
श्रीम. के. सारंगी/Shri M. K. Sarangi, अपरआयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री. शलभ कटियार/ Shri ShalabhKatiyar संयुक्तआयुक्त (जनरल)/Jt. Commissioner (General)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री प्रभाकर कुमार /Shri Prabhakar Kumar संयुक्तआयुक्त (निर्यात)/Jt. Commissioner (Export)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री गोविंद कुमार गर्ग/ Shri Govind Kumar Garg संयुक्तआयुक्त (आयात)/Jt. Commissioner (Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
सुश्रीप्रियाजाधव/ Ms PriyaJadhav उप. आयुक्त(निर्यात)/Dy. Commissioner (Export)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
Shri B. Vinayak उप. आयुक्त(निर्यात)/Dy. Commissioner (Export)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री प्रशांत गवंदे/Shri Prashant Gawande **सहायकआयुक्त (आयात)**/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री बिपिन जाधव /Shri Bipin Jadhav **सहायकआयुक्त (आयात)**/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री अश्विनी बांडेकर/Shri Ashwini P. Bandekar **सहायकआयुक्त (आयात)**/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री रवी सुवर्णा/ Shri Ravi K. Suvarna **सहायकआयुक्त (आयात)**/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री राजेन्द्र बोरकर/ Shri Rajendra P. Borkar **सहायकआयुक्त (आयात)**/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी
श्री रोशनलाल/ Shri Roshan Lal **सहायकआयुक्त (आयात)**/Asstt. Commissioner(Import)	Customs, ACC,Andheri सीमाशुल्क,हवाईमालसंकुल,अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Bala Ayer, Mohsin G Charania,	ACAAI
Shri Dushyant Mulani, Shri Sanjeev Harale, Shri Kaushal Thakkar, Shri Ketan Desai	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA

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Shri Mohamad Nasir , Nandan Kanchan, Mavilvanan T., Manoj Singh	MIAL
Shri K. D. Dhule,	AIATSL
Mrs. Manita Churi	ADC
Shri Mark Fernandes	IMC
Shri Sandeep B. Kadam	C.P.F. Pvt. Ltd.

At the outset, Commissioner of Customs (Import) welcomed the members of Trade, Customs Brokers, Airlines Representatives, Custodian Representatives, and other stake holders present in the meeting. Following agenda points were taken up:

AGENDA POINTS FROM PREVIOUS MEETING :

1. **Refund of Double Duty payment due to EDI system error:**

Trade representatives informed that there are several instances of double duty payment happening due to EDI system error. They have requested to issue Public Notice / Instruction for stipulating the time frame for sanction of double duty refund.

Matter has been taken up with Delhi PAO office to resolve it at the earliest.

(Issue closed)

2. **Delay in clearance:**

The Consolidators & Airline are not indicating their office landline or mobile number, e mail id's on their CARGO ARRIVAL NOTICE which is a serious lapse . Further, it is also to inform that their contact details available on website are also remains unanswered when someone call. For example M/S. ARAMEX.

Commissioner (General) informed that since it is observed that the consolidators and Airlines are not attending PTFC Meeting, a separate meeting will be arranged for Airlines to discuss Airlines and Consolidators issues.

(Customs – General)

3. **Security lapse by AIR INDIA:**

There is an urgent need to install the CCTV Camera in import, export shed of AIR INDIA, this request from the trade is pending from very long time.

AIATSL informed that the financial approval for installation of CCTV Camera is pending and expected to resolve it till 31st March. Regarding issue of inadequate light facility in Air India Shed, Commissioner (General) has instructed AIATSL that full lighting facility for examination purpose to be installed latest by 17th March 2020 and AIATSL has agreed to install enough light facility in Air India Shed before 17th March 2020.

(AIATSL)

4. **Delay in clearance of Import consignments at AIR INDIA W/H:** In import, online payment of warehouse charges is still not operative by Air India and they are still working on the basis of giving R Number (Rotation Number) to the packages. This point was discussed long back in the previous PTFC meeting.

Trade has informed that this issue has been resolved by AIATSL, so now there is no issue in online payment of warehouse charges to AIATSL.

(Issue closed)

5. **Shortage of Shed DC and other officers for export:**

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There has been acute shortage of officers which is resulting in delayed clearances. They have requested that additional officer are provided in the Export shed.

Commssioner (Export) informed that two new Dy. Commissioners have already joined Export Shed and the issue has been resolved.

(Issue closed)

6. **Double payment of SWS duty:**

Trade has informed that on 10th January 2020, Social Welfare Surcharge(SWS) duty on Import has to be paid by them in cash and it is also got debited from License in the system, which leads to double payment of SWS duty for that one day.

Chairman suggested to submit such cases, so that issue can be examined and taken up.

(Customs - Import)

7. **Trade has expressed concern for creating awareness among trade for renewal of different types of AEOs registrations which are expiring in coming months:**

Chairman informed that an awareness program will be conducted soon for renewal of AEO registration in Second week of March 2020 in all Mumbai Customs Zone.

(Customs-Import)

8. **Login Problem for AEO Client:**

COSIA representatives informed that some of their AEO clients unable to login in the system from 25th January 2020. They have followed up the matter with concern authority but problem still persist.

Commissioner (General) has informed that the matter has been taken up with DG(System).

(Issue closed)

NEW AGENDA POINTS:

POINTS RAISED BY BCBA:

1) **24X7 facilities for import clearance:** The trade has requested 24 X 7 clearance facilities without delay. The issuance of the delivery order is required on 24 x 7 basis to avoid delay in clearance of the import consignments.

Commissioner (Import) has informed that P.N. No. 48/2020 dated 21.02.2020 has already been issued in this regard and 24x7 clearance is being done as per said PN.

(Customs-Import)

2) **Voluntary payment of Customs Duty / Recovery of differential duty with interest:** The trade has requested that voluntary payment of customs duty should be processed for payment of differential duty along with interest in time bound manner.

This problem is mainly in the B/Es which are recalled due to Classification/Notification benefit etc. In such cases, Commissioner (Import) has advised trade to pay duty under protest for such disputed Bills of Entries.

(Customs-Import)

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3) **Request for AEO awareness week for Trade:** The trade has requested the department to help the AEO Clients by arranging AEO Awareness week for guidance for applying and timely renewal of the AEO Certificates.

Commissioner (Import) has informed that AEO Awareness Week will be conducted in Second week of March 2020 in all Mumbai Customs Zone.

(Customs-Import)

4) **Timely processing of Refund claims:** the trade has informed that there are several instances besides interpretative issues of classification &notification applicability; where the refunds are arising out of no dispute between the importer and the Dept.

They have enlisted the following instances where there is urgent need to formulate instructions to disburse the refund claims back to the importer which are arising out of no disputes.

a) Excess payment of duty due to error in EDI System.

b) Double duty payment due to system error

c) Refund duty deposited/ EDD

d) Refund arising out of the bonafide clerical error.

e) Short shipment and part shipment

They have also suggested that above refunds should be processed in stipulated time limit which needs to be followed and monitored by field formation. At present, they have submitted that trade and industry has to follow-up rigorously even for refunds arising out of EDI system errors. These kinds of refunds are arising due to no fault of importers.

Commissioner (Import) has conveyed that such issues to be bought to the notice of ADC / JC (Import) and Commissioner on urgent basis so that the issues can be redressed on priority basis.

(Customs-Import)

5) **Extension of Gate pass timing from 8.00 p.m. to 10.00 p.m. on permanent basis:**
In view of the slow & erratic working of EDI System, Registration of Import and Exports documents has been adversely affected, thus leading to back log. They have requested to kindly extend the gatepass timing from 8.00 p.m. to 10.00 p.m. on permanent basis.

MIAL has not agreed to extend the gate pass timing from 8.00 p.m. to 10.00 p.m. on permanent basis and Commissioner (General) has mentioned that delivery data will be monitored on hourly basis and accordingly MIAL will be coordinated.

(MIAL)

6) **Precautions to be taken for outbreak of Corona Virus in China:** Trade has requested to be guided about precautions to be taken, if any, for packages imported from China.

Commissioner (Import) has said to remain calm and not to be panic as no such adversity has been observed and if there is any such issue comes to notice, immediate response will be taken.

POINTS RAISED BY ACAAI:

1. **Clarity for refund of MEIS / Making the refund procedure simple:** Need clarity for refund of MEIS when the exporter / importer is voluntarily coming forward to refund the amount. MEIS scrips have been utilized or sold and there is no import coming.
The trade has requested to make the refund procedure as simple as PN 74 /2018 dated 15.06.2018 for refund of drawback issued by ACC Mumbai. Please also refer PN 07 / 2019 dated 02.05.2019, issued by ACC Mumbai and DGFT PN 17 / 2015 – 20 dated 03.07.2018.

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Commissioner (Import) mentioned that the above said Public Notices have been issued and are being followed. The procedure being followed is sufficiently simple in itself, and if there is any specific issue that may be brought to the notice of Commissioner (Import).

(Customs-Import)

2. **Amendment to the DGFT Public Notice on MEIS:** The Trade has requested an amendment to the DGFT Public Notice on MEIS which says that any refund of MEIS should be deposited with customs. Their point is that since monitoring and issuing of license is the responsibility of DGFT, they should also arrange to accept any refund of MEIS. Making customs responsible to collect the MEIS refund involves too many procedures. They have suggested that Customs only responsibility should be to transmit the shipping bills to DGFT as soon as the EGM is filed.

Commissioner (Import) has mentioned that amendment to the DGFT Public Notice is outside the purview of Customs and only DGFT is competent for any amendment to the DGFT Public Notices.

(Customs-Import)

3. **Acceptance of photocopy of the cancelled Cheque:** At the time of First Time Exporter registration, the officer is insisting on actual cancelled cheque instead of a photocopy of the cancelled cheque. Everywhere else a photocopy of the cancelled cheque is accepted.

Commissioner (Export) informed that presently this request cannot be accepted. No cancelled photocopy of Cheque will be accepted. However, if other complete bank details are provided by the importer then photocopy of cancelled Cheque can be accepted.

(Customs-Export)

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chair.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय, आयुक्त महोदय (आयात) और आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of Commissioner of Customs (General/Import/Export), Mumbai Customs Zone-III.

20/3/2020

O/C

(गोविंद कुमार गर्ग / Govind Kumar Garg)
संयुक्त आयुक्त सीमा शुल्क (आयात)
Joint Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

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